Alabama Rules of Appellate Procedure

Rule 56.

Redaction of personal data identifiers in documents filed with the appellate courts.

(a) Unless the court orders otherwise, any electronic or paper document filed with the appellate courts in accordance with the provisions of Rule 28 or Rule 32 of these rules that contains a Social Security number, a taxpayer-identification number, a financial-account number, date of birth, the name of an individual known to be a minor, or the home address of an individual, the person or entity making the filing shall redact the personal data identifiers to include only:

(1) the last four digits of a Social Security number or a taxpayer-identification number;

(2) the last four digits of a financial-account number;

(3) the year of a date of birth;

(4) the minor's initials; and

(5) the city and state of the home address.

(b) In the event a document is filed that has been redacted in compliance with this rule and the document contains private or confidential information that cannot be adequately redacted so as to reasonably protect the private or confidential nature of the information contained therein and the need to protect the privacy or confidentiality of the information contained therein clearly exceeds the merits of public disclosure, the front cover of the document being filed shall be clearly identified by the filer in accordance with the provisions of Rule 28(d)(8), Rule 32(a)(2)(F), or Rule 32(a)(3)(C) of these rules.

(c) The records and papers filed, or caused to be filed, in the appellate court by the parties in any proceeding subject to section (b) of this rule shall be open for inspection only to counsel of record, and, upon order of the appellate court, to others having a proper interest therein.

[Adopted 3-1-2010, eff. 6-1-1020.]

Court Comment

Subparagraph (a) of this rule adopts a redaction policy for briefs, petitions, motions, and other documents filed in the appellate courts. This subparagraph is based upon Rule 5.2, Federal Rules of Civil Procedure, and Rule 49.1, Federal Rules of Criminal Procedure. Subparagraph (b) of this rule provides a procedure for identifying documents that, after having been redacted pursuant to subparagraph (a), contain information for which redaction does not provide sufficient privacy protection.

Note from the reporter of decisions: The order amending, effective June 1, 2010, Rule 28(d)(8), Rule 32(a), and Rule 52, Alabama Rules of Appellate Procedure, and adopting Rule 56 and the Court Comment to Rule 56, Alabama Rules of Appellate Procedure, is published in that volume of *Alabama Reporter* that contains Alabama cases from ___ So. 3d.